Sadanand Sahoo vs Orissa Elecricity Regulatory ... on 11 April, 2011

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

IA Nos.237 & 288 of 2010 in
D.F.R. No. 1113 of 2010

Dated :11th April, 2011
Present: Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. V.J. Talwar, Technical Member

Sadanand Sahoo ... Appellant(s)
Versus
Orissa Electricity Regulatory Commission & Anr. ....Respondent(s)
Counsel for the Appellant(s): -
Counsel for the Respondent(s): Mr. Hasan Murtaza & Mr. Saswat Pattnaik

ORDER

IA Nos.237 & 288 of 2010 Today also the learned counsel for the Applicant/Appellant is absent. He has filed two Applications, one is for the waiver of court fee and another is for condonation of delay in filing the Appeal.

These Applications have been objected to by the learned counsel for the Respondent stating that the Applicant/Appellant has no locus standi to file this Appeal as he is not an aggrieved person.

Though an affidavit has been filed by the learned counsel appearing for the Applicant/Appellant to the effect that he is a consumer, he is not present for two hearings to substantiate the said claim. Even today he is absent. The learned counsel for the Respondent submits that the applicant is not a consumer. Therefore, we hold that both these Applications are not maintainable. Accordingly both the Applications are dismissed. Consequently, the Appeal is also dismissed.

(V.J. Talwar) (Justice M. KarpagaVinayagam)
Technical Member Chairperson

TS/KS